

2:00 PM

LINE: 8

25-CIV-09560

PAULA NIEVES VS. MARK GILLMAN, ET AL

PAULA NIEVES
MARK GILLMAN

LOUIS S. ABRONSON
ROWENA P. LIZIN

PETITIONER PAULA NIEVES' PETITION FOR ORDER RELIEVING PETITIONER FROM PROVISIONS OF GOVERNMENT CODE SECTION 945.4 OR OTHERWISE ACCEPTING HER GOVERNMENT CLAIM AS TIMELY

TENTATIVE RULING:

Plaintiff Paula Nieves's petition for relief under Government Code section 946.6 is **GRANTED**.

Defendant City of Redwood City's request for judicial notice is **GRANTED** as to the existence, filing, and legal effect of the court records and public records submitted, but not for the truth of any reasonably disputed factual matter asserted in those records.

Plaintiff alleges she was injured on January 23, 2025, near 1601-1607 Woodside Road in Redwood City. Because the claim concerns personal injury, Plaintiff was required to present a claim to the appropriate public entity within six months after accrual. (Gov. Code, § 911.2, subd. (a).) Plaintiff did not present a claim to the City of Redwood City within that six-month period.

Plaintiff did, however, timely present a claim to the City of San Mateo on or about June 27, 2025. On October 1, 2025, the City of San Mateo rejected the claim because the subject property was not located within that city. On October 7, 2025, Plaintiff submitted a claim and application for leave to present a late claim to the City of Redwood City. Redwood City denied the late-claim application on October 20, 2025.

The late-claim application was made within one year after accrual and within a reasonable time after Plaintiff learned that the claim had been presented to the wrong public entity. (Gov. Code, § 911.4, subd. (b).) The petition for court relief was also timely, assuming the docket confirms it was filed within six months after Redwood City denied the late-claim application. (Gov. Code, § 946.6, subd. (b).)

The Court finds that Plaintiff's failure to timely present the claim to Redwood City resulted from mistake, inadvertence, or excusable neglect. Plaintiff's case manager mistakenly submitted the claim to the City of San Mateo because he confused the San Mateo County forum with the proper public entity for claim presentation. The error is not ideal, particularly because Plaintiff's intake materials and the claim form identified the incident location as Redwood City. However, the record shows that Plaintiff's counsel timely attempted to present a claim within the original claim period, promptly corrected the error after receiving the City of San Mateo's rejection, and timely sought late-claim relief from Redwood City. Under the policy favoring trial on the merits and the standards stated in *Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270, the Court does not find the neglect clearly inexcusable.

Redwood City has not established that it would be prejudiced in defending the claim if relief is granted. Accordingly, Plaintiff is relieved from the requirements of Government Code section 945.4 as to her claim

against the City of Redwood City. The Court does not deem the original claim timely; rather, it grants relief under Government Code section 946.6 from the claim-presentation requirement.

This ruling does not adjudicate the merits of Plaintiff's claims, the City's liability, dangerous-condition issues, causation, damages, or any other defense. It only permits Plaintiff to proceed against Redwood City notwithstanding the late presentation of the government claim.

**UD LAW AND MOTION CALENDAR
THURSDAY, JULY 09, 2026**

2:00 PM

LINE: 1

26-UDL-00133

MERCY HOUSING CALIFORNIA VS. IMAD OUBELLA, ET AL

**MERCY HOUSING CALIFORNIA
IMAD OUBELLA**

**DANIEL M. BORNSTEIN
PRO SE**

PLAINTIFF MERCY HOUSING CALIFORNIA’S MOTION FOR SUMMARY JUDGMENT; REQUEST THAT THE COURT TAKE JUDICIAL NOTICE

TENTATIVE RULING:

PARTIES TO APPEAR.

Posted: 3:00 P.M.